‘Ugly Partiality’

Let us first begin with the intimidatory methods used in Tuticorin. The humiliation of the protest ‘riots’ rankled in the minds of the police, giving an edge to their tough handling of the Swadeshis.

For a start, VOC’s house in Tuticorin was searched on 20 March 1908.[3] Many documents were seized, though nothing incriminating was found. In fact, the government decided against producing them in court realizing that the seized correspondence would be counterproductive in securing VOC’s conviction.[4] However, the chilling effect that the search would have had on the family and SSNCo can well be imagined.

If steadfast Swadeshi agitators were shadowed and intimidated, even paid employees of SSNCo were not spared—a course of action that had begun even before VOC’s arrest. ‘The Swadeshi Co.’s business is frequently harassed and hampered in many ways’, observed *The Hindu* adding that ‘[t]he procedure is curiously illegal’.[5] ‘[A]mong the persons now under arrest are those who are concerned with some kind of Swadeshi undertaking, shareholders in the S.S.N.Co., pleaders, and schoolmasters.’[6]

For instance, on 2 March, Sankara Subbu Aiyar, a subordinate employee of SSNCo who drew a monthly salary of only Rs 10, was arrested when he was walking on the road. According to VOC, all he had was a penknife.[7] Produced before Sub-Magistrate Ashe under Section 152 of the Indian Penal Code for assault, he was bound over with no evidence being adduced. It was an open secret that Eric Chapman of BI—K.R. Guruswami Aiyar said as much to the governor as did VOC in a public meeting—was behind this incident. The poor fellow was released only after he executed his own ‘*muchalika*’ (bond).[8]

Two weeks later, it was the turn of SSNCo’s passenger superintendent, Thevaram Pillai, to be taken into custody. Bound over for a year to keep peace, he could walk out of prison only after executing a bond for a substantial Rs 500. If *The Hindu* contended that the notice served on him did not even state the legal provision under which it was served,[9]